



Petitioning for Humanitarian Protection From Outside the Country

Argentina • Australia • Brazil • Canada • China
Germany • India • Italy • Japan • Mexico • Russia
Saudi Arabia • South Africa • South Korea
Turkey • United Kingdom

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Prepared by the Staff of the Global Legal Research Directorate

SUMMARY This report reviews the laws and regulations of select G-20 countries regarding the application process for asylum and humanitarian protection, specifically whether an applicant’s physical presence in the country is required to apply for asylum or refugee status. All the countries reviewed are parties to the 1951 Convention Relating to the Status of Refugees and its 1967 Protocol, except for India and Saudi Arabia. It appears that these two countries do not have specific legislation governing the granting of asylum and refugee status. In all the other surveyed jurisdictions, these issues are governed by national laws and executive regulations issued by authorities in charge of resolving migration-related issues. Most of the countries included in this survey require an applicant’s physical presence at the border or within the country’s territory. In some countries (Argentina, Mexico, Russia, South Africa, and Turkey), a time limit for the period when an application can be submitted is in place. Canada and Mexico each accept asylum applications from outside of the country. Canada processes such applications as a part of its visa application process, while Mexico allows submitting a petition from outside of the country for political asylum only. Brazil, as a party to the Convention on Diplomatic Asylum of the Organization of American States, allows applicants to request diplomatic asylum in Brazilian embassies abroad. Australia and Canada allow humanitarian protection and refugee status requests from abroad when protection is sought through a resettlement program administered by the United Nations, another designated referral agency, or by private sponsorship. In Russia, current legislation enables consular offices abroad to review applications and grant temporary protection status that allows entry to the country; however, this provision is excluded from a recently introduced bill.

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Argentina	No	No	The application for recognition of refugee status must be submitted by the interested party, verbally or in writing, or by their representative or intervening authority. The applicant must appear in the offices of the Executive Secretariat for the asylum procedure to begin.	Ley 26.165 of 2006, Nov. 8, 2006, Ley General de Reconocimiento y Protección al Refugiado, Disposiciones Generales, Extradición, Condición Jurídica del Refugiado, Órganos Competentes y Funciones en materia de Refugiados, Procedimiento para la Determinación de la Condición de Refugiado,

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			Persons who currently receive protection or assistance from a United Nations body or agency other than the United Nations High Commissioner for Refugees (UNHCR) do not require international protection and, therefore, are not recognized as refugees in Argentina. Asylum requests must be presented verbally or in writing on the border or within Argentine territory before the immigration authorities. Application for refugee status while outside of Argentina (for example, before an Argentine consulate) is not permitted. Asylees and refugees are foreigners considered as “temporary residents” allowed to reside in the national territory for a period of two years, which is indefinitely renewable. Foreigners who invoke humanitarian reasons that, according to the National Migrations Directorate, grant a special treatment are also considered temporary residents. The application for refugee status is a request for international protection and not a way to regularize the migratory situation. Refugee status is temporary, that is, it is maintained for	Disposiciones Finales, arts. 10(a), 16, 36, 41, 44, https://perma.cc/NW3Q-EGK9. UNHCR, <i>Guía de Información para Refugiados y Solicitantes en Argentina: Procedimiento, Derechos y Deberes; Direcciones Útiles</i>, https://perma.cc/PVZ7-NHNNH. Ley 25.871 of 2003, Dec. 17, 2003, Migraciones: Nuevo Régimen Legal, art. 23(k), (m), https://perma.cc/D5KG-XPBW. <i>Preguntas Frecuentes</i>, Arg. Interior Ministry, https://perma.cc/A74U-UQ9R.

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			the duration of the circumstances that led a person to flee their country of origin.	
Australia	No	Yes	Permanent “protection visas” can only be applied for by asylum-seekers who arrive in Australia legally; those arriving without a valid visa can only apply for temporary visas. Those arriving by boat without a valid visa will be returned or taken to a regional processing country and cannot settle in Australia. Refugee category visas are usually granted to applicants outside Australia who have been assessed and referred by UNHCR for resettlement in Australia. However, for subclass 202 (Global Special Humanitarian visa), applicants are proposed by family members or approved organizations in Australia. Applicants for this visa must be outside Australia and their home country.	Migration Act 1958 (Cth) ss 5H–5LA, 35A–37A, 39A & pt 2 div 8 subdiv B (Regional processing), https://perma.cc/GG6K-BYZM; Migration Regulations 1994 (Cth), sch 1 pt 4 (Protection, Refugee and Humanitarian visas) & sch 2 subclasses 200–204, 785, 790 & 866, https://perma.cc/CEZ3-M9GM (vol. 1), https://perma.cc/A6V5-S6UE (vol. 2), https://perma.cc/R4RY-4BCU (vol. 3). <i>Refugee and Humanitarian Program: Protection Visas (Onshore)</i>, Department of Home Affairs, https://perma.cc/H2C8-AHT9; <i>Regional Processing and Resettlement</i>, Department of Home Affairs, https://perma.cc/CK4W-9NZ9. <i>Subclass 200, 201, 203 and 204: Refugee Category Visas</i>, Department of Home Affairs, https://perma.cc/2T3M-CNPW. <i>Refugee and Humanitarian Program: The Special Humanitarian Program (SHP)</i>, Department of Home Affairs, https://perma.cc/45CX-QRHD; <i>Subclass 202: Global Special Humanitarian Visa</i>,

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				Department of Home Affairs, https://perma.cc/7J6N-Q64F ; <i>Community Support Program</i> , Department of Home Affairs, https://perma.cc/VZU4-NQCX .
Brazil	No	Yes	Asylum in Brazil can be diplomatic or territorial. Diplomatic asylum applies to a person who is in a foreign country and requests asylum in the Brazilian Embassy. It consists of the protection offered by the Brazilian State and the conduct of the asylee strictly to the national territory, in line with the provisions of the Convention on Diplomatic Asylum of the Organization of American States (OAS), enacted by Decree No. 42,628, of November 13, 1957. Upon arrival in national territory, the beneficiary of diplomatic asylum will be immediately informed of the need to register their condition. Territorial asylum applies to a person who is in the national territory and requests asylum in Brazil. It is a discretionary act and will	Lei No. 13.445, de 24 de Maio de 2017, art. 27, https://perma.cc/UK8D-D5XX. Decreto No. 9.199, de 20 de Novembro de 2017 regulates Lei No. 13.445, de 24 de Maio de 2017, arts. 108 – 118, https://perma.cc/5WRS-DJPF. Decreto No. 42.628, de 13 de Novembro de 1957, https://perma.cc/6R86-CXP4. Decreto No. 55.929, de 14 de Abril de 1965, https://perma.cc/N7ST-KJBM. Lei No. 9.474, de 22 de Julho de 1997, art. 7, https://perma.cc/XP2C-G46P.

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			observe the provisions of the Convention on Territorial Asylum of the OAS, enacted by Decree No. 55,929, of April 19, 1965, and the impeding elements contained in the immigration legislation. The asylum seeker must present himself to the Federal Police for the purpose of registering his migratory status within a period of 30 days, counted from the date of publication of the act granting political asylum. An alien who reaches the national territory can express his or her desire to apply for recognition as a refugee to a migratory authority at the border; the migratory authority then provides the alien with the necessary information about the recognition procedure. Under no circumstance can an alien be deported to the border of a territory where his or her life, or freedom would be threatened on account of race, religion, nationality, social group, or political opinion. This benefit, however, may not be invoked by a refugee considered dangerous to the security of Brazil.	

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Canada	Yes	Yes	The Immigration and Refugee Protection Act (IRPA) regulates asylum in Canada. Section 99(1) states that a claim can be made inside or outside of Canada. Section 99(2) states that a claim made from outside of Canada is done through a visa application as a “Convention refugee or a person in similar circumstances.” This application is governed by Part I of IRPA. Applications from outside of Canada as part of a resettlement program must be referred by either the UNHCR or another designated referral agency, or through private sponsorship. This referral requirement is reflected at section 140.3 of the Immigration and Refugee Protection Regulations (IRPR), and the referral organizations make agreements with the Government of Canada under section 143 of IRPR. The Province of Quebec selects its own Convention refugees. The process is governed by Division IV of the Québec Immigration Regulation.	Immigration and Refugee Protection Act, S.C. 2001, c. 27, https://perma.cc/X6DH-33V7. Immigration and Refugee Protection Regulation, SOR/2002-227, https://perma.cc/YK7C-95VT. “How Canada’s Refugee System Works,” Immigration, Refugees and Citizenship Canada, https://perma.cc/B8JC-83SL. Québec Immigration Regulation, c. I-0.2.1, r. 3, https://perma.cc/8NJA-JH9S.

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China	Not clear.	Not clear.	The People’s Republic of China (PRC) is a party to the 1951 Convention Relating to the Status of Refugees and its 1967 Protocol. Art. 32, para. 2 of the PRC Constitution declares that the country may grant asylum to foreigners who request it for political reasons. The Exit and Entry Administration Law, which took effect in July 2013, contains an article that allows persons who are applying for refugee status or have been granted the status to stay or reside legally in China. Detailed legal provisions on the implementation of this article, however, do not appear to have been adopted.	Constitution of the PRC (adopted by the Nat’l People’s Cong. (NPC) on Dec. 4, 1982, last amended Mar. 11, 2018), https://perma.cc/VEW7-PMVK . Exit and Entry Administration Law of the PRC (adopted by the NPC Standing Comm. on June 30, 2012, effective July 1, 2013), art. 46, https://perma.cc/LC7A-GRRS (in Chinese and English).
Germany	No	No	Principle of “territorial asylum” applies; application for asylum or international protection must be made at the branch office of the Federal Office for Migration and Refugees (Bundesamt für Migration und Flüchtlinge, BAMF) assigned to the reception center responsible for receiving the foreigner or at BAMF directly; asylum requests made at the German border, at a foreigners’ authority, or the police are referred to the competent reception center.	Asylgesetz [AsylG], Sept. 2, 2008, Bundesgesetzblatt [BGBl.] I at 1798, § 14, § 18, para. 1, § 19, para. 1, https://perma.cc/Z9S9-QFD9 (original), https://perma.cc/9VDP-AYFT (English translation, updated through Mar. 11, 2016). Bundesverwaltungsgericht [BVerwG], June 26, 1984, 69 Entscheidungen des Bundesverwaltungsgerichts [BVerwGE] 323, paras. 10-13, https://perma.cc/7GQ2-RW5E .

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India	No	No	India does not have a formal refugee and asylum law or policy. Such matters are largely handled in an ad-hoc manner. Examples include mass influx refugees and “politically sensitive individuals.” There is no apparent individualized asylum application procedure for applying inside or outside the country.	Hamsa Vijayaraghavan, <i>Gaps in India’s Treatment of Refugees and Vulnerable Internal Migrants Are Exposed by the Pandemic</i> , Migration Pol’y Inst. (Sept. 10, 2020), https://perma.cc/LL6D-53AQ ; Bhairav Acharya, <i>The Future of Asylum in India: Four Principles to Appraise Legislative Proposals</i> , 9 NUJS L. Rev. 173 (2016), https://perma.cc/6EQP-X3MY .
Italy	No	No	Italian law requires that petitioners for international protection submit their requests personally to the police unit corresponding to their place of residence upon entering the national territory. International protection includes refugee status and subsidiary protection. The residence permit for refugee status is valid for five years and is renewable. A residence permit for subsidiary protection status is valid for three years. Asylum requesters may only be held for the time strictly necessary to define the legality of their stay in Italy.	Decreto Legislativo 28 gennaio 2008, n. 25 Attuazione della Direttiva 2005/85/CE recante Norme Minime per le Procedure Applicate negli Stati Membri ai fini del Riconoscimento e della Revoca dello Status di Rifugiato, art. 6(1), https://perma.cc/3DJ5-376K. Decreto Legislativo 25 luglio 1998, n. 286 Testo Unico delle Disposizioni concernenti la Disciplina dell’Immigrazione e Norme sulla Condizione dello Straniero, https://perma.cc/2YCU-TLUG, arts. 2(1) (referring to foreigners present at the border or in the territory of the state) and 2(7) (indicating that diplomatic protection is exercised in accordance with the rules of international law).

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			Asylum seekers must be transferred to temporary detention centers or medical facilities if in urgent need of treatment.	Legge 28 febbraio 1990, n. 39 Conversione in legge, con Modificazioni, del Decreto-Legge 30 Dicembre 1989, n. 416, recante Norme Urgenti in materia di Asilo Politico, di Ingresso e Soggiorno dei Cittadini Extracomunitari e di Regularizzazione dei Cittadini Extracomunitari ed Apolidi gia’ Presenti nel Territorio dello Stato. Disposizioni in Materia di Asilo, Allegato [annexes], Nos. 1, 5 & 7, https://perma.cc/Q4LV-7YF5 (referring to the situation of asylum seekers who attempt to enter the national territory). Testo Coordinato del Decreto-Legge 30 dicembre 1989, n. 416 Testo del Decreto-Legge 30 Dicembre 1989, n. 416 (in Gazzetta Ufficiale - Serie Generale - n. 303 del 30 Dicembre 1989), Coordinato con la Legge di Conversione 28 Febbraio 1990, n. 39 (in Gazzetta Ufficiale - Serie Generale - n. 49 del 28 Febbraio 1990), recante: “Norme Urgenti in Materia di Asilo Politico, di Ingresso e Soggiorno dei Cittadini Extracomunitari e di Regularizzazione dei Cittadini Extracomunitari ed Apolidi gia’ Presenti nel Territorio dello Stato,” art. 1(4)-(5), https://perma.cc/LBH9-9SH2.

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				Decreto-Legge 4 ottobre 2018, n. 113 Disposizioni Urgenti in materia di Protezione Internazionale e Immigrazione, Sicurezza Pubblica, nonche’ Misure per la Funzionalita’ del Ministero dell’interno e l’Organizzazione e il Funzionamento dell’Agenzia Nazionale per l’Amministrazione e la Destinazione dei Beni Sequestrati e Confiscati alla Criminalita’ Organizzata, art. 1(1)(a) amending D.L. 286, art. 4-bis, para. 2, third line; art. 1(1)(h), adding article 20-bis to D.L. 286; and art. 3, https://perma.cc/WGU6-DPWE. Decreto Legislativo 9 Novembre 2007, n. 251, Attuazione della Direttiva 2004/83/CE recante Norme Minime sull’Attribuzione, a Cittadini di Paesi Terzi o Apolidi, della Qualifica del Rifugiato o di Persona Altrimenti Bisognosa di Protezione Internazionale, nonche’ Norme Minime sul Contenuto della Protezione Riconosciuta, arts. 2, 23(1)-(2), https://perma.cc/B37J-GNL4. Legge 30 luglio 2002, n. 189, Modifica alla Normativa in Materia di Immigrazione e di Asilo, art. 32(1)-(2), https://perma.cc/G3RH-K6AF.

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				Decreto del Presidente della Repubblica 31 agosto 1999, n. 394 Regolamento recante Norme di Attuazione del Testo Unico delle Disposizioni concernenti la Disciplina dell'Immigrazione e Norme sulla Condizione dello Straniero, a Norma dell'Articolo 1, comma 6, del Decreto Legislativo 25 luglio 1998, n. 286, art. 21(4), https://perma.cc/G26W-R4ZR .
Japan	No	No		Immigration Control and Refugee Recognition Act, Cabinet Order No. 319 of 1951, amended by Act No. 63 of 2019, art. 61-2, https://perma.cc/7BPP-5EEL .
Mexico	Refugee status: No Political Asylum: Yes	No	Applications for refugee status can be filed in Mexico within 30 days after the applicant entered the country. Refugee status can be granted to a number of eligible individuals, including: those who, due to fear of being persecuted on the basis of race, religion, gender, political opinion or being a member of a certain social group, are outside their	Ley sobre Refugiados, Protección Complementaria y Asilo Político, arts. 2-IX, 11, 13, 18, 61, 63, 65, 69, Diario Oficial de la Federación [D.O.F.], Jan. 27, 2011, as amended through 2022, https://perma.cc/QD2N-3BGA .

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			country of nationality and cannot or do not want to request protection by that country, • those who do not have a nationality and are, as a consequence of such fear of persecution, outside the country where they had habitual residence and cannot or do not want to return, • individuals who fled their country of origin because their lives, liberty, or safety were at risk due to a variety of reasons, including generalized violence, foreign aggression, internal conflict, a massive violation of human rights, or other circumstances that have gravely disturbed public order. Political asylum may be granted to foreigners whose life, liberty, or safety are at risk due to political reasons directly related to their public profile and who lack protection by their country. Applicants for this status must appear in person in an office of Mexico’s Department of Foreign Relations located in Mexico <u>or abroad</u> in order to provide their identification data, the reasons that support their application, and all available evidence.	

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Russia	No	Yes	Application for asylum must be submitted in person to the local office of the Internal Affairs Ministry within 7 days after petitioner’s arrival in Russia or establishment of circumstances not allowing their return to the country of citizenship or permanent residence. Petition for humanitarian protection and refugee status can be submitted to a diplomatic or consular office of the Russian Federation abroad. The diplomatic office conducts preliminary review and, in case of favorable resolution, issues a temporary protection certificate, which allows entry into Russia, where the decision on granting refugee status is made by the authorities. This option is not included in the Protection Granting Bill introduced in the Russian legislature in 2022. The bill has not been discussed yet.	Decree of the Russian Federation President No. 748 of July 21, 1997, on Approving the Statute on Granting Political Asylum by the Russian Federation (last amended 2018), Garant.ru, https://perma.cc/R7UC-Z5P7 (in Russian). Federal Law on Refugees (last amended 2022), RG No. 54, 1993, https://perma.cc/BYB7-SA6T (in Russian). Regulation of the Russian Federation Government No. 274 of April 9, 2001, on Granting Temporary Protection on the Territory of the Russian Federation (last amended 2022), RG No. 84, 2001, https://perma.cc/3Y6N-LJVB (in Russian).
Saudi Arabia	No	No	The Kingdom of Saudi Arabia does not have domestic legislation regulating asylum or refugee status. Additionally, the Kingdom of Saudi Arabia is not a member state of the 1951 Convention Relating to the Status of Refugees and its 1967 Protocol.	

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South Africa	No	No	South Africa’s Refugees Act provides: “An application for asylum must be made in person in accordance with the prescribed procedures to a Refugee Status Determination Officer at any Refugee Reception Office or at any other place designated by the Director-General by notice in the Gazette.” The Refugees Regulations require that an application for asylum under the Refugees Act “be made in person by the applicant upon reporting to a Refugee Reception Office or on a date allocated to such a person upon reporting to the Refugee Reception Office.” A person who, at a port of entry, claims to be an asylum seeker may be issued an asylum transit visa, “valid for a period of five days only, to travel to the nearest Refugee Reception Office in order to apply for asylum.”	Refugees Act 130 of 1998 (as amended), § 21 (Dec. 2, 1998), https://perma.cc/W8PV-SRHU. Refugees Regulations, 2018, § 8 (Jan. 1, 2020), https://perma.cc/U8LU-J4JZ. Immigration Act 13 of 2002, § 23 (May 31, 2002), https://perma.cc/3A94-VRRA.
South Korea	No	No		Refugee Act, Act No. 11298, Feb. 10, 2012, amended by Act No. 14408, Dec. 20, 2016, arts. 5, 6. https://perma.cc/LT4Q-TDVQ.

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Turkey	No	No	Applications for international protection, including asylum or humanitarian protection (“secondary protection”), must be made to border police at the ports of entry or submitted in person to the provincial immigration administration “within a reasonable time” following entry into the country.	İçişleri Bakanlığı Law No. 6458, Official Gazette No. 28615, Apr. 11, 2013, art. 65, https://perma.cc/CMF7-76M3 (in Turkish). İçişleri Bakanlığı Ulaştırma, Denizcilik ve Haberleşme Bakanlığı Gazette No. 29656, Mar. 17, 2016, art. 65, https://perma.cc/EL39-KVCN (in Turkish).
United Kingdom	No	No	A claim for asylum must be made in person at a “designated place.” Designated places are all currently in the UK. The UK does participate in resettlement plans for refugees who have been formally recognized by the UNHCR. The operation of this plan is at the discretion of the government. A claim for humanitarian protection is considered to be an application for asylum. The claim for humanitarian protection will be considered if the asylum claim is unsuccessful.	Nationality, Immigration and Asylum Act 2002, c. 41, § 18, https://perma.cc/U9T2-LSY8. Nationality and Borders Act 2022, c. 36, § 14, https://perma.cc/Z6XV-FCRQ. Immigration Rules, Part 11: Asylum (last updated Nov. 30, 2022), https://perma.cc/H26W-ZNVK. Home Office, <i>UK Refugee Resettlement: Policy Guidance</i> (Aug. 2021), https://perma.cc/7ZFG-AJNP.